OFFICE OF THE COMMISSIONER OF CUSTOMS (EXPORT)
AIR CARGO COMPLEX, SAHAR, ANDHERI (EAST), MUMBAI – 400 099

F.No. S/RTI/ 13/APPEAL/EXP/2020-21 ACC **DATE OF ORDER: 07.01.2021**
DATE OF ISSUE: 07.01.2021

ORDER IN APPEAL NO. 13/2020-21

PASSED BY : SUDHAKAR PANDEY
: FIRST APPELLATE AUTHORITY
: JOINT COMMISSIONER OF CUSTOMS (EXPORT)

ORDER-IN-APPEAL

1. This Order-in-Appeal is issued under Sub-Section (6) of Section 19 of the Right to Information Act, 2005.

2. An Appeal against this order can be preferred to the Central Information Commission, Old JNU Campus, Block 4, 5th Floor, New Delhi-110 067 under Sub-Section (3) of Section 19 of the Right to Information Act, 2005, if the appellant so desires within 90 days from the date of receipt of this order.

Appeal from : Shri Abhishek R. Mandhana,

Address : 10/45, "Rameshwari"
Opposite Hotel Hirkani, Ichalkaranji-416115

The present RTI appeal dated 04.05.2020 filed under Section 19(1) of the Right to Information Act, 2005 (herein referred to as "the Act") was received in this office on 22.09.2020. It has been filed by Shri Abhishek R. Mandhana, 10/45, "Rameshwari", Opposite Hirkani Hotel, Ichalkaraji-416115 (herein after referred to as "the appellant") against the order of the CPIO reply dated 21.02.2020.

BRIEF FACTS OF THE CASE

Shri Abhishek R. Mandhana (herein after to be referred as *'the appellant')* filed an application under Right to Information Act, 2005 on 27.01.2020, received on 10.02.2020 in the concerned office, seeking information under *Right to Information Act, 2005* (herein after referred as *'the Act'*) for information as to know the reason for blocking of fixed deposit of M/s. Shyam Cotton Textiles in Mahesh Sahakari Bank Ltd, Ichalkaraji Branch.

2. The *Central Public Information Officer (CPIO), Export, ACC* vide *Order dated 21.02.2020* had informed that as per the available records in the office, Order-in-Original No.AC/RGB/5634/2016-2017/ADJ/ACC dated 28.02.2017 was passed by AC/DBK (XOS) vide F.No.S/3-Misc-DBK (XOS)118(1142)2015-16 ACC. As per the above order, DBK amount of Rs.10,044/- along-with applicable interest and penalty of Rs.5,000/-was recoverable from M/s Shyam Cotton Textiles. Consequently, TRC (X) ACC vide letter dated 17.10.2018 directed CEO of Mahesh Sahakari Bank to deduct the above mentioned amount from A/c. of exporter and deposit the same in the A/c. of the Commissioner of Customs (Export), Sahar, ACC, Mumbai.

The said FD is blocked as Government Dues reflected in Order-in-Original No.AC/RGB/5634/2016-2017/ADJ/ACC dated 28.02.2017 are still not paid by the exporter and thus are recoverable as on date also. In view of the above, the present RTI application dated 27.01.2020 was disposed of by the CPIO, Export, ACC, Mumbai.

3. I have perused the matter of appeal, original *RTI* application and the order dated 21.02.2020 passed by the *CPIO*.

4. The applicant was given opportunity for Personal Hearing on 24.09.2020, 04.11.2020 and 01.12.2020. Receiving no communication from him, he was contacted on his office landline number and informed about the communication sent through e-mail on 16.12.2020. He informed telephonically that he had checked his e-mail and the correspondence sent by the office were found in his spam box. He also provided his whatsapp number 9822673151 for virtual contact.

PERSONAL HEARING (PH)

5. The applicant was given another opportunity on 06.01.2021 for Personal Hearing through whatsapp video call and he appeared for the same, wherein the aappellant was asked about the delay in filing the Appeal and he informed that due to Covid-19, he could not file the appeal on time and the same may be condoned.

He explained that he had sent the required BRC through post by his letter dated 02.08.2016 and why it was not taken on record. After hearing the appellant, he was asked about any specific information which is not provided to him by CPIO. He told that he does not want any specific information, rather he reiterated his ground of appeal requesting that an enquiry should be ordered by First Appellate Authority (FAA) as to why the document submitted by him were not taken on record and why the order was passed without acknowledging the documents. He has nothing more to add.

ORDER

6. In have thoroughly gone through the reply of the CPIO and submissions made by the appellant and I find that the information sought by the applicant has been provided by the CPIO vide order dated 21.02.2020. The appellant does not want any specific information, rather he reiterated his ground of appeal requesting that an enquiry should be ordered by First Appellate Authority (FAA) as to why the document submitted by him were not taken on record and why the order was passed without acknowledging the documents.

I find that the definition of information under section 2(f) of RTI Act, 2005 as "*any material in any form, including records, documents, memos, e-mails, opinions, advices, press releases, circulars, orders, logbooks, contracts, reports, papers, samples, models, data material held in any electronic form and information relating to any private body which can be accessed by a pubic authority under any law for the time being in force.*"

Further, I find the grounds of appeals are as under:

a) Instruct the PIO to verify the documents submitted.
b) Recommend the PIO to cancel the demand of dues.
c) Lift the block on the Fixed Deposit.
d) Resolve the case digitally and avoid personal hearing considering the Covid-19.

Further, during the course of Personal Hearing, the *appellant* has requested to conduct an enquiry as to why the document submitted by him, were not taken on record and why the order was passed without acknowledging the documents.

However, I find that none of these comes under the definition of *information* under RTI Act, 2005. Further, the appellant has submitted that he does not want any specific information.

The relief sought after by the *appellant* and request for an enquiry to be held as to why the documents submitted by him were not taken into record, is beyond the jurisdiction of the First Appellate Authority. However, I find that FAA can only order CPIO for providing the information which is available on records and can't conduct an enquiry.

In view of the above discussions and findings, I find that the CPIO has provided the information requested by the *appellant* and no further information is required.

Therefore, with these observations the present appeal stands disposed off.

7/1/2021

(Sudhakar Pandey)
First Appellate Authority,
Joint Commissioner of Customs (Export)
Air Cargo Complex, Sahar

To,

Shri Abhishek R. Mandhana,
10/45, "Rameshwari"
Opposite Hirkoni Hotel, Ichalkaranji-416115

Copy to:-

1. CPIO / RTI Cell (Export) ACC, Mumbai.
2. CPIO / RTI Cell, CC Office, Zone III, Mumbai.
3. Office Copy.